Terms of Use

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Introduction

These are the terms and conditions of use for **www.offhrs.app** (the "Terms") and all affiliated digital properties owned and operated by offhrs ("we", "us", and "our"), including all subdomains (such as **partners.offhrs.app**), subdirectories, mobile sites, and mobile applications deployed on the Apple App Store and Google Play Store (collectively, the "Site" or "Platform").

Your use of the Site is subject to these Terms. By downloading, accessing, or using the Site, you agree to be bound by them. These Terms govern your general access to the infrastructure of the Platform.

Vendors also accept these Terms (and, as applicable, the Marketplace Seller Addendum) when they create a Partners account, enable the Artist Marketplace, publish a Marketplace product, connect Stripe for payouts, or install or connect the offhrs Sync app from Shopify. If there is a conflict between documents, the Data Protection Addendum prevails for data-handling matters and the Marketplace Seller Addendum prevails for the sale of Marketplace goods.

Important: These Terms **do not** make offhrs the provider of in-person workshops or the seller of physical Marketplace goods. Workshops and Marketplace goods (together, "Vendor Services") are fulfilled by independent third-party partners (the "Vendors"). offhrs acts as an intermediary technology platform and limited payment collection agent. We do not host, employ, warehouse, or ship Vendor Services.

1. Description of services

offhrs provides a two-sided marketplace:

- **For consumers:** discovery, booking, and payment for creative workshops in Toronto and surrounding areas, and (where available) purchase of physical art and craft goods through the Artist Marketplace via offhrs.app and the offhrs mobile apps.
- **For vendors (makers and studios):** a Partners dashboard at **partners.offhrs.app** for workshop SaaS tools (Lite / Pro), optional Shopify Sync (see Section 3.4), and/or Artist Marketplace selling (included with Pro, or via a free Marketplace-only enrollment), including Stripe Connect payouts.

2. Tax compliance & HST/GST obligations

As an Ontario-registered operating entity, the Platform and its users must adhere to the rules of the Canada Revenue Agency (CRA):

- **Platform SaaS fees.** offhrs offers a free Marketplace Only plan and paid Partners plans: **$29 CAD/month (Lite)**, **$29 CAD/month (Shopify Sync)**, **$39 CAD/month (Pro)**. Paid subscription fees represent a taxable supply of digital services in Canada; we automatically add **13% Ontario HST** on top of Stripe-billed subscription prices. Shopify Sync is billed by Shopify through Shopify Billing (not by Stripe), and any taxes on those charges are applied by Shopify as shown in your Shopify billing.
- **Workshop ticket sales.** The Vendor is the "Seller of Record" for in-person workshops. Vendors must determine their CRA small-supplier status and configure workshop tax settings appropriately.
- **Artist Marketplace goods.** The Vendor is the Seller of Record for physical goods. When the Vendor is registered for GST/HST, offhrs calculates and collects applicable GST/HST at Marketplace checkout into the Vendor's Stripe Connect account (same model as workshop tickets), and remittance remains the Vendor's responsibility. When the Vendor is not registered, offhrs does not collect GST/HST at Marketplace checkout. You must keep your GST/HST registration status and number in your dashboard tax settings accurate and up to date. See the Marketplace Seller Addendum. offhrs does not provide tax advice; obtain your own.
- **Tax remittance (workshops).** Where workshop HST is collected into the Vendor's Stripe Connect account under the Vendor's registration settings, remittance remains the Vendor's responsibility unless we notify you otherwise in writing.
- **Tax remittance (Marketplace).** Where Marketplace GST/HST is collected into the Vendor's Stripe Connect account under the Vendor's registration settings, remittance remains the Vendor's responsibility unless we notify you otherwise in writing. Vendors also remain responsible for their own income tax and for registering when required.

3. Payments, billing, and the 30-day free trial

All financial interactions on the Platform are processed securely through Stripe.

3.1 Vendor subscriptions

- **The trial.** Vendors registering on partners.offhrs.app for a Stripe-billed plan (Lite or Pro) are granted a **30-day free trial**. Valid credit-card details are collected upon registration. Marketplace Only has no subscription fee or trial. Shopify Sync includes a 30-day free trial that is administered by Shopify (see Section 3.4).

- **Auto-renewal.** On day 31, the trial of a Stripe-billed plan automatically converts to a paid monthly billing cycle at your chosen plan (Lite or Pro) plus applicable HST.
- **Cancellation.** Vendors may cancel a Stripe-billed plan at any time from the dashboard settings. Cancellations must be logged prior to the renewal date to avoid the next billing increment. Shopify Sync is cancelled through Shopify (including by uninstalling the app).

3.2 Ticket and Marketplace transactions & fees

- **Direct payouts.** Workshop and Marketplace payouts use Stripe Connect Express destination charges, with funds settling to the Vendor's connected bank account. For Marketplace orders, buyer-paid shipping (and any seller handling fee collected as shipping) is held on the platform so it is not paid out as Vendor merchandise earnings; shipping funds prepaid Canada Post labels purchased via Shippo. GST/HST collected for a registered Vendor is paid out to the Vendor's Connect account for the Vendor to remit.
- **Workshop fee structure.** For workshop bookings, offhrs does **not** take a percentage commission. Stripe's standard card-processing fee (currently **2.9% + CA$0.30** per successful transaction for domestic cards, as published by Stripe at stripe.com/en-ca/pricing) applies to the gross total and is borne by the Vendor. International cards and other payment methods may incur additional fees under Stripe's published pricing.
- **Marketplace fee structure.** For Artist Marketplace sales, offhrs charges a **3% platform fee** on the item subtotal (excluding tax and shipping postage), **plus** Stripe's standard card-processing fee (currently **2.9% + CA$0.30** per successful transaction for domestic cards, as published by Stripe), which is separate and also borne by the Vendor. International cards and other methods may incur additional Stripe fees. Platform fee, estimated Stripe processing (when applicable), and shipping collected may be collected via Stripe application fees on the payment.
- **Workshop refund window.** Consumers may self-serve cancellations and refunds inside the mobile app or web checkout history when the workshop start time is outside the Vendor's configured refund window. The Platform minimum is **24 hours**; Vendors may set a longer window (e.g. 48 hours).
- **Marketplace cancellations.** Before carrier First Scan (or before pickup completion), buyers may cancel and receive a full refund from **Profile** → **Orders** in the mobile app when permitted by the Platform and carrier void rules. The Vendor may also refund from the Partners dashboard, and offhrs may refund (for example, for a missed ship-by window). After First Scan, order cancellation via the Platform is blocked; damaged / not-as-described issues follow the Marketplace Seller Addendum claim rules.
- **Refund fees.** Stripe does not return its processing fee when a charge is refunded. When a booking or eligible Marketplace order is refunded, the consumer receives the full amount paid (including applicable tax) back to their original payment method, and the non-refundable Stripe processing fee remains the **Vendor's responsibility** unless we state

otherwise. The fee is netted against the reversed payout in the Vendor's Stripe Connect Express balance where applicable.

3.3 Chargebacks and payment disputes (Vendors)

Payments for workshop bookings and Marketplace orders are processed through Stripe Connect to your connected account. You are the seller of record for those sales.

- Chargebacks and payment disputes relating to your workshops, Marketplace orders, or Partner subscription may result in deductions from your Connect balance or future payouts, including the full disputed amount, Stripe dispute fees (currently about **CAD $15** per dispute, subject to change by Stripe), and reasonable costs offhrs incurs in connection with the dispute.
- You authorize offhrs to debit or offset such amounts from your Stripe Connect Express account, future payouts, or by invoice if your balance is insufficient, including via transfer reversal where available. You agree to cooperate promptly with evidence requests (for Marketplace orders, this includes shipping labels, tracking, and proof of packing or pickup where relevant). Marketplace carrier postage adjustments (APV) may likewise be debited.
- offhrs is not responsible for chargebacks arising from your conduct, inaccurate listings, failure to deliver a workshop as described, failure to ship or make Marketplace goods available for pickup as represented, or your refund and return practices. Abnormal chargeback rates may lead to suspension or termination of Partner or Marketplace access.
- We encourage resolving issues through in-app flows or hello@offhrs.app before a card dispute is filed.

3.4 Shopify Sync (offhrs Sync app)

- **What it does.** Shopify Sync is an optional app that you install from Shopify. With your authorization, it reads product, inventory, and product-listing information from your Shopify store ("Shopify Data") and uses it to create and update your workshop listings on offhrs. It is a read-only connection: offhrs does not edit your Shopify products, prices, inventory, orders, or customers, and does not request access to your Shopify customer or order data. The app may send status feedback to Shopify about the sync. It supports Canada / CAD stores.
- **Bookings on your Shopify store.** Consumers who select a synced listing complete booking and payment on your Shopify checkout. You are the Seller of Record and the contracting party for those sales. offhrs does not process payment for them, is not a party to them, and takes **no commission** on them. You are solely responsible for pricing, taxes, refunds, inventory accuracy, fulfilment, customer service, and your compliance with Shopify's terms and applicable law for those sales.
- **Fees and billing.** After a 30-day free trial, Shopify Sync costs **$29 CAD per 30-day billing cycle**, billed by Shopify through Shopify Billing. Shopify's terms and billing practices govern

those charges, including refunds and credits. Cancel by cancelling the subscription or uninstalling the app in your Shopify admin.

- **Accuracy and rights.** Shopify Data that is published on offhrs is Vendor content (see Section 7) and is subject to the Content Policy. Syncing may be delayed, incomplete, or interrupted (for example, because of changes to Shopify's systems), and offhrs may hide or remove any synced listing that is inaccurate, expired, or in breach of our policies.
- **Uninstall and termination.** If you uninstall the app, Shopify cancels your subscription, or your store is otherwise disconnected, offhrs will stop syncing, disconnect your store, and remove or archive the synced listings from public browse. We handle Shopify's data-deletion requests as required by Shopify's program requirements.
- **Independence.** Shopify is a trademark of Shopify Inc. offhrs is independent of, and is not endorsed or sponsored by, Shopify. Shopify is a third-party service; offhrs is not responsible for its availability, acts, or omissions.

4. Accounts, security, and calendar integrity

- **Account protection.** You are responsible for maintaining the confidentiality of your sign-in credentials and any third-party OAuth sessions (Google, Apple). Notify us immediately at hello@offhrs.app if you detect unauthorized access.
- **Calendar accuracy.** Vendors must keep their dashboard calendars up to date. Deliberate manipulation, double-booking negligence, or repeated failure to honour confirmed bookings constitutes a material breach of these Terms and may result in subscription termination.

5. Prohibited conduct

Except as expressly permitted by these Terms, you are strictly prohibited from:

- **Data scraping.** Using automated programs, scripts, crawlers, or spiders to harvest studio schedules, pricing, metadata, or reviews from offhrs.app.
- **Reverse engineering.** Attempting to decompile, clone, or reverse-engineer our scheduling engine, database schemas, or application code to build a competing marketplace or scheduling utility.
- **Bypassing the platform.** Using the discovery features to source students or Marketplace buyers and coordinate bookings or purchases off-platform to avoid fees payable under these Terms (including the Marketplace platform fee). This does not restrict listings that link to your own checkout, such as Shopify Sync listings, which are permitted features of the Platform.

6. Disclaimers & limitation of liability

- **As-is.** The Platform is provided on an "as-is" and "as-available" basis. We do not guarantee uninterrupted, latency-free operation or absolute uptime.
- **Physical event liability.** offhrs has zero liability for property damage, personal injury, health conditions, or unmet expectations arising during an in-person workshop hosted by a Vendor. Any disputes regarding workshop quality, safety, materials, or studio facilities must be settled directly between the student and the Vendor.
- **Marketplace goods.** offhrs does not make, own, inspect, store, or ship Marketplace goods. offhrs has no liability for the quality, safety, legality, authenticity, description, or condition of goods sold by Vendors, or for delay, loss, or damage in carrier transit, except as expressly set out in the Marketplace Seller Addendum and the Service Terms claim process. Those matters are between the buyer, the Vendor, and (for transit) the carrier.
- **Third-party services.** The Platform relies on third-party services (including Stripe, Shippo, Canada Post, Shopify, and our hosting and email providers). offhrs is not responsible for their availability, acts, or omissions. Vendors must comply with the terms of the third-party services they use through the Platform, including Stripe's Connected Account Agreement and, for Shopify Sync, Shopify's terms.
- **Financial limitations.** To the maximum extent permitted by applicable law in the Province of Ontario, our total aggregate liability for any claim arising under these Terms is limited to the greater of (a) the fees paid by you to offhrs (subscription fees and Marketplace platform fees, excluding ticket, goods, shipping, and tax pass-through amounts) over the three (3) months immediately preceding the claim, and (b) CAD $100. offhrs is not liable for indirect, incidental, special, consequential, or punitive damages, or for lost profits, revenue, or data. These limits do not apply to liability for our own fraud, gross negligence, or wilful misconduct.
- **Consumer rights.** Nothing in these Terms is intended to exclude or limit rights that applicable law does not allow to be excluded or limited, including rights under the *Consumer Protection Act, 2002* (Ontario).

7. Vendor content, licence, and indemnity

- **Your content.** You keep ownership of the listing content you provide or sync (including titles, descriptions, photos, prices, inventory data, logos, and business details). You represent that you have all rights needed to provide it and that it is accurate and lawful.
- **Licence to offhrs.** You grant offhrs a non-exclusive, worldwide, royalty-free licence to host, reproduce, resize, adapt for format, display, and distribute that content in connection with operating, securing, and promoting the Platform, including in the web and mobile apps and in offhrs marketing and social channels that feature your listings. This licence ends when you remove the content or close your account, except for copies in backups, order records, and legal records that we must or may retain.

- **Vendor indemnity.** You will defend, indemnify, and hold harmless offhrs and its directors, officers, employees, and agents from third-party claims, and related losses, liabilities, costs, and reasonable legal fees, arising from: (a) your workshops or Marketplace goods (including product safety, defects, recalls, labelling, and infringement of intellectual property); (b) your listing content or Shopify Data; (c) your breach of these Terms, the Marketplace Seller Addendum, or the Content Policy; (d) your tax obligations; or (e) your dealings with consumers or buyers.

8. Governing law and jurisdiction

These Terms, your access to the Platform on the Apple and Google Play networks, and any disputes arising out of the Platform shall be governed by the laws of the Province of Ontario and the federal laws of Canada applicable therein. Any formal mediation or legal proceedings must be initiated and resolved within the judicial district of Toronto, Ontario.

9. Changes, feedback, and communications

We may update these Terms as our services and legal requirements change. We will post the updated Terms with a revised "Last updated" date and will give reasonable advance notice of material changes (for example, by email or a notice in the app or Partners dashboard). If you do not agree to a change, you may stop using the Platform and cancel your plan before it takes effect; continuing to use the Platform afterwards means you accept the updated Terms.

Submit formal questions, security notifications, or technical feedback to hello@offhrs.app.